

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, state bar number, and address): Collection At Law, Inc., A.P.C., Edgar B. Lopez, (State Bar #: 333312) 3835 E Thousand Oaks BL #R349, Westlake Village, CA 91362 CA Debt Collection License Number: 10868-99		FOR COURT USE ONLY Filed September 3, 2024 Clerk of the Court Superior Court of CA County of Santa Clara 24CV430518 By: suy					
TELEPHONE NO.: (818) 716-7630	FAX NO. (Optional): (818) 716-7775						
E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): Plaintiff, WELLS FARGO BANK, N.A.							
SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SANTA CLARA STREET ADDRESS: 191 North First Street MAILING ADDRESS: 191 North First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Downtown Superior Court							
PLAINTIFF: WELLS FARGO BANK, N.A. DEFENDANT: JUAN CARLOS QUIRARTE, an individual		CASE NUMBER: 24CV430518					
<table style="width: 100%; border: none;"> <tr> <td style="width: 33%;">☒ By Clerk</td> <td style="width: 33%;">☒ By Default</td> <td style="width: 33%;">☐ After Court Trial</td> </tr> <tr> <td>☐ By Court</td> <td>☐ On Stipulation</td> <td>☐ Defendant Did Not Appear at Trial</td> </tr> </table>			☒ By Clerk	☒ By Default	☐ After Court Trial	☐ By Court	☐ On Stipulation
☒ By Clerk	☒ By Default	☐ After Court Trial					
☐ By Court	☐ On Stipulation	☐ Defendant Did Not Appear at Trial					

JUDGMENT1. ☒ **BY DEFAULT**

- a. Defendant was properly served with a copy of the summons and complaint.
- b. Defendant failed to answer the complaint or appear and defend the action within the time allowed by law.
- c. Defendant's default was entered by the clerk upon plaintiff's application
- d. ☒ **Clerk's Judgment** (Code Civ. Proc., § 585(a)). Defendant was sued only on a contract or judgment of a court of this state for the recovery of money.
- e. ☐ **Court Judgment** (Code Civ. Proc., § 585(b)). The court considered
 - (1) ☐ plaintiff's testimony and other evidence.
 - (2) ☐ plaintiff's written declaration (Code Civ. Proc., § 585(d)).

2. ☐ **ON STIPULATION**

- a. Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and
- b. ☐ the signed written stipulation was filed in the case.
- c. ☐ the stipulation was stated in open court ☐ the stipulation was stated on the record.

3. ☐ **AFTER COURT TRIAL.** The jury was waived. The court considered the evidence.

- a. The case was tried on (date and time):
before (name of judicial official):
- b. Appearances by:

☐ Plaintiff (name each):	☐ Plaintiff's attorney (name each):
(1)	(1)
(2)	(2)
☐ Continued on Attachment 3b.	
☐ Defendant (name each):	☐ Defendant's attorney (name each):
(1)	(1)
(2)	(2)
☐ Continued on Attachment 3b.	
- c. ☐ Defendant did not appear at trial. Defendant was properly served with notice of trial.
- d. ☐ A statement of decision (Code Civ. Proc., § 632 ☐ was not ☐ was requested.

PLAINTIFF: WELLS FARGO BANK, N.A. DEFENDANT: JUAN CARLOS QUIRARTE, an individual	CASE NUMBER: 24CV430518
---	----------------------------

JUDGMENT IS ENTERED AS FOLLOWS BY: ☐ THE COURT ☒ THE CLERK

4. ☐ **Stipulated Judgment.** Judgment is entered according to the stipulation of the parties.

5. **Parties.** Judgment is

a. ☒ for plaintiff (*name each*):
WELLS FARGO BANK, N.A.

c. ☐ for cross-complainant (*name each*):

and against defendant (*names*):
JUAN CARLOS QUIRARTE, an individual

and against cross-defendant (*name each*):

☐ Continued on Attachment 5a.

☐ Continued on Attachment 5c.

b. ☐ for defendant (*name each*):

d. ☐ for cross-defendant (*name each*):

6. **Amount.**

a. ☒ Defendant named in item 5a above must pay plaintiff on the complaint.

c. ☐ Cross-defendant named in item 5c above must pay cross complainant on the cross complaint:

(1) ☒ Damages	\$8,478.26
(2) ☐ Prejudgment interest at the annual rate of %	\$
(3) ☒ Attorney fees	\$500.00
(4) ☒ Costs	\$300.00
(5) ☐ Other (<i>specify</i>):	\$
(6) TOTAL	\$9,278.26

(1) ☐ Damages	\$
(2) ☐ Prejudgment interest at the annual rate of %	\$
(3) ☐ Attorney fees	\$
(4) ☐ Costs	\$
(5) ☐ Other (<i>specify</i>):	\$
(6) TOTAL	\$

b. ☐ Plaintiff to receive nothing from defendant named in item 5b.
☐ Defendant named in item 5b to recover costs \$
☐ and attorney fees \$

d. ☐ Cross complainant to receive nothing from cross-defendant named in item 5d.
☐ Cross-defendant named in item 5d to recover costs \$
☐ and attorney fees \$

7. ☒ Judgment debtor is a natural person, and as provided in Code Civ. Proc., §§ 683.110, 685.010:
 \$ of this judgment is on a claim related to medical expenses
 \$9,278.26 of this judgment is on a claim related to personal debt

8. ☐ Other (*specify*):

Date:

☐

JUDICIAL OFFICER

9/3/2024
Date:

☒

Clerk, by

SUY

, Deputy



(SEAL)

CLERK'S CERTIFICATE (*Optional*)

I certify that this is a true copy of the original judgment on file in the court.

Date:

Clerk, by

, Deputy